

PREPARED BY:
DEPT. OF ENVIRONMENT, HEALTH
& NATURAL RESOURCES

BOOK 1710 PAGE 761

MAIL TO: MOORE & VAN ALLEN
(D F)

CLOSURE NOTICE

STATE OF NORTH CAROLINA
COUNTY OF DURHAM

BEFORE THE DIVISION OF SOLID WASTE MANAGEMENT
DEPARTMENT OF ENVIRONMENT, HEALTH AND
NATURAL RESOURCES

IN RE:

PROPERTY OF KEY HOMES, INC.)
(EQUITABLE CONSTRUCTION CO.))
LOCATED IN CEDAR FORK TOWNSHIP)

NOTICE OF CLOSED
UNPERMITTED
SOLID WASTE
DISPOSAL SITE

NOTICE IS HEREBY GIVEN THAT SOLID WASTE HAS BEEN BURIED ON THE
HEREINAFTER DESCRIBED PROPERTY OF

KEY HOMES, INC.
(EQUITABLE CONSTRUCTION COMPANY)
2640 PLAZA PLACE, SUITE 310
RALEIGH, N.C. 27612

AT THE LOCATION DESCRIBED UPON THE ATTACHED MAP BOOK PREPARED BY ROBERT W.
KEEFE, REGISTERED LAND SURVEYOR, AND RECORDED IN MAP BOOK 127, PAGE
25.

BEGINNING at a stake in the property line on the west side of N.C. Highway #55, at Ed Lowe's southeast corner, and running thence North 83 degrees 00 minutes West approximately 2013.7 feet to a stake; thence South 3 degrees 45 minutes West 849.4 feet to a stake; thence South 85 degrees 00 minutes East 1645.5 feet to a stake; thence North 2 degrees 45 minutes East approximately 617.9 feet to a stake; the northwest corner of lot designated "C" as shown on the plat hereinafter referred to; thence along the north line of Lot "C" South 85 degrees 00 minutes East 385.3 feet to a stake in the property line on the west side of N.C. Highway #55; thence along and with said property line in a northerly direction a distance of approximately 147 feet, to the place and point of BEGINNING, and being Lots designated a "D" and "E" as shown on map of property of E.C. and W.J. McGhee by Credle Engineering Company dated July 18, 1955, and recorded in Plat Book 30 at page 144 in the Durham County Registry, to which map reference is hereby made for a more particular description of said property.

When the property, or any part of this property on which solid waste has been buried, is conveyed, grantor shall place the following language upon the deed, in no smaller type than that used in the body of the deed:

03758

12e

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"This is notification that solid waste has been disposed on this property. See Closure Notice Recorded at Book 1710, Page 761. Questions concerning this matter may be directed to the North Carolina Department of Environment, Health and Natural Resources, Division of Solid Waste Management, Solid Waste Section, P.O. Box 27687, Raleigh, North Carolina 27611-7687."

This Closure Notice is not a permit for solid waste disposal, and is not to be construed as a permit for a disposal facility. The site has never been a permitted solid waste disposal site, and has come to the attention of the Solid Waste Section in the context of closure of non-conforming sites/open dumps, pursuant to 15A N.C. Admin. Code 13B .0502.

The sole purpose of recording this Closure Notice is to give actual and constructive notice to subsequent purchasers of the property described herein, in order to reduce any risk to public health or the environment from the improper disturbance of the waste.

After recording, this original instrument, affixed with the seal of the Register of Deeds, together with the date, book and page number of recording, shall be returned to:

The Solid Waste Section
Division of Solid Waste Management
Wachovia Bank Building
225 Green Street, Suite 601
Fayetteville, N.C. 28301

Terry F. Dover

Terry F. Dover
Eastern Area Supervisor
Solid Waste Section

NORTH CAROLINA

Cumberland COUNTY

I, Terri M. Frazier a Notary Public for said
County and State, do hereby certify that Terry F. Dover
personally appeared before me this day and acknowledged the due execution
of the foregoing instrument.

Witness my hand and official seal, this the 30th day of
September, 1991.

(OFFICIAL SEAL)



Terri M. Frazier
Notary Public

My commission expires: August 4, 1996.

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KEY HOMES

INC.

BY:

James W. Adams (SEAL)
Vice President

ATTEST:

W. Frank Merritt

Assistant Secretary

(Corporate Seal)

NORTH CAROLINA

GUILFORD COUNTY

I, Joan E. Inge, a Notary Public of the aforesaid County and State, do hereby certify that W. Frank Merritt personally appeared before me this day and acknowledged that he/she is the Assistant Secretary of Key Homes, Inc., a North Carolina corporation, and that by authority duly given and as an act of the corporation, the foregoing instrument was signed in its name by its Vice President, and attested by himself/herself as Assistant Secretary, and sealed with its common corporate seal.

Witness my hand and notarial seal this 7th day of January, 1992.

Joan E. Inge
Notary Public

My Commission Expires:

4-13-92

FILED

BOOK 1710 PAGE 764-764

'92 FEB 20 AM 9 37

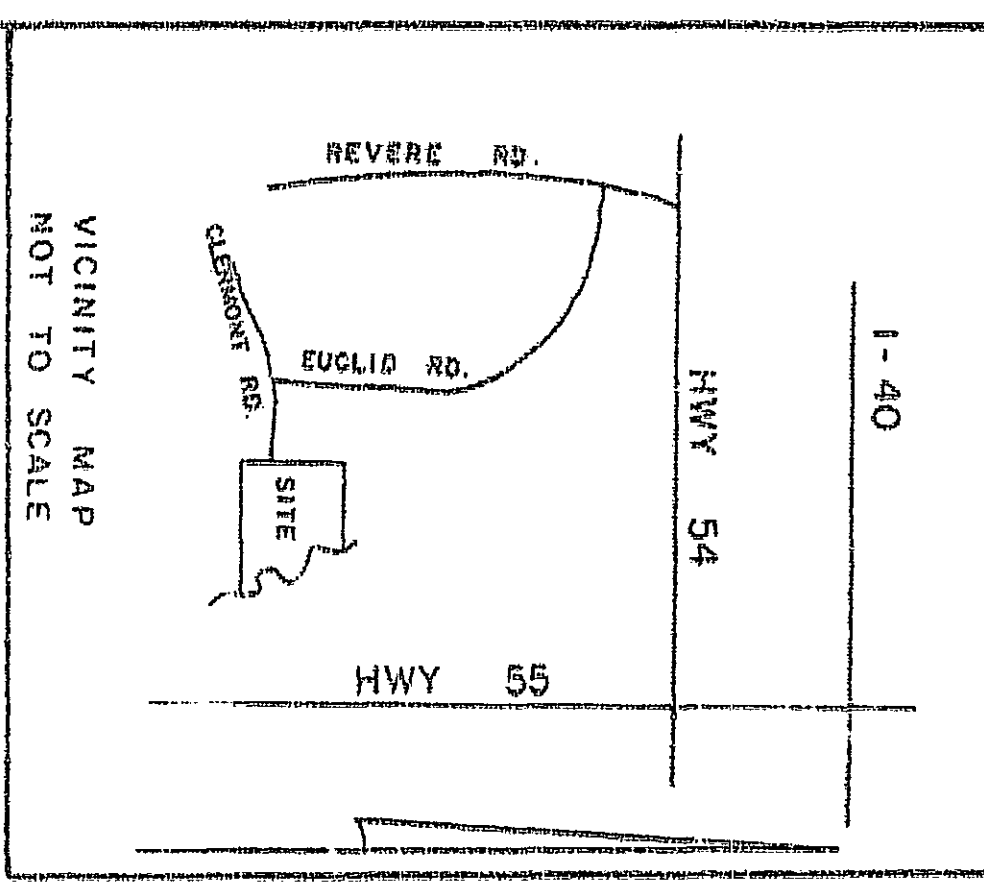
RUTH C. GARRETT
REGISTER OF DEEDS
DURHAM COUNTY, N.C.

State of North Carolina-Durham County
The foregoing certificate(s) of Joan E. Inge

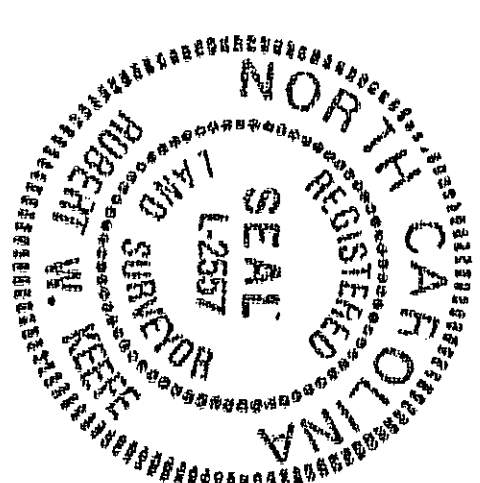
Joan E. Inge
A Notary (Notaries) Public for the Designated Governments units is (are) certified to be correct.

This the 20th day of Feb. A.D. 1992
Ruth C. Garrett James W. Adams
Register of Deeds By: Assistant, Deputy
Register of Deeds

RAL_1\F:\DOCS\DEF\ENVIRONM\23673_1

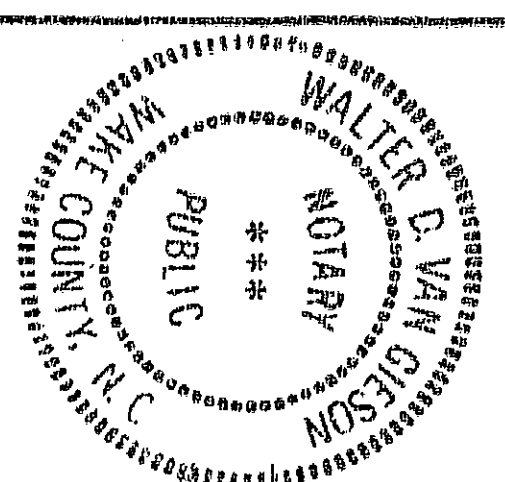


NORTH CAROLINA
WAKE COUNTY
I, ROBERT W. KEEFE, CERTIFY THAT THIS PLAT WAS DRAWN UNDER MY SUPERVISION FROM AN ACCURATE SURVEY AND THAT THE BOUNDARIES AND DEED DESCRIPTIONS RECORDED IN BOOK PAGE 127, PLAT 2, ARE CORRECT AND TRUE TO THE ORIGINAL RECORDS OF THE COUNTY. I HAVE BEEN A REGISTERED LAND SURVEYOR IN WAKE COUNTY SINCE 1981. MY REGISTRATION NUMBER IS 1-3557.
THIS 21ST DAY OF FEB. A.D. 1991
ROBERT W. KEEFE
REGISTERED LAND SURVEYOR



NORTH CAROLINA
WAKE COUNTY
I, A. A. NORTON, PUBLIC OF THE COUNTY AND STATE, DO HEREBY CERTIFY THAT THE SURVEY AND PLAT HEREIN RECORDED ARE TRUE TO THE ORIGINAL RECORDS OF THE COUNTY. I HAVE BEEN A REGISTERED LAND SURVEYOR IN WAKE COUNTY SINCE 1981. MY REGISTRATION NUMBER IS 1-3557.
THIS 21ST DAY OF FEB. A.D. 1991
A. A. NORTON
REGISTERED LAND SURVEYOR

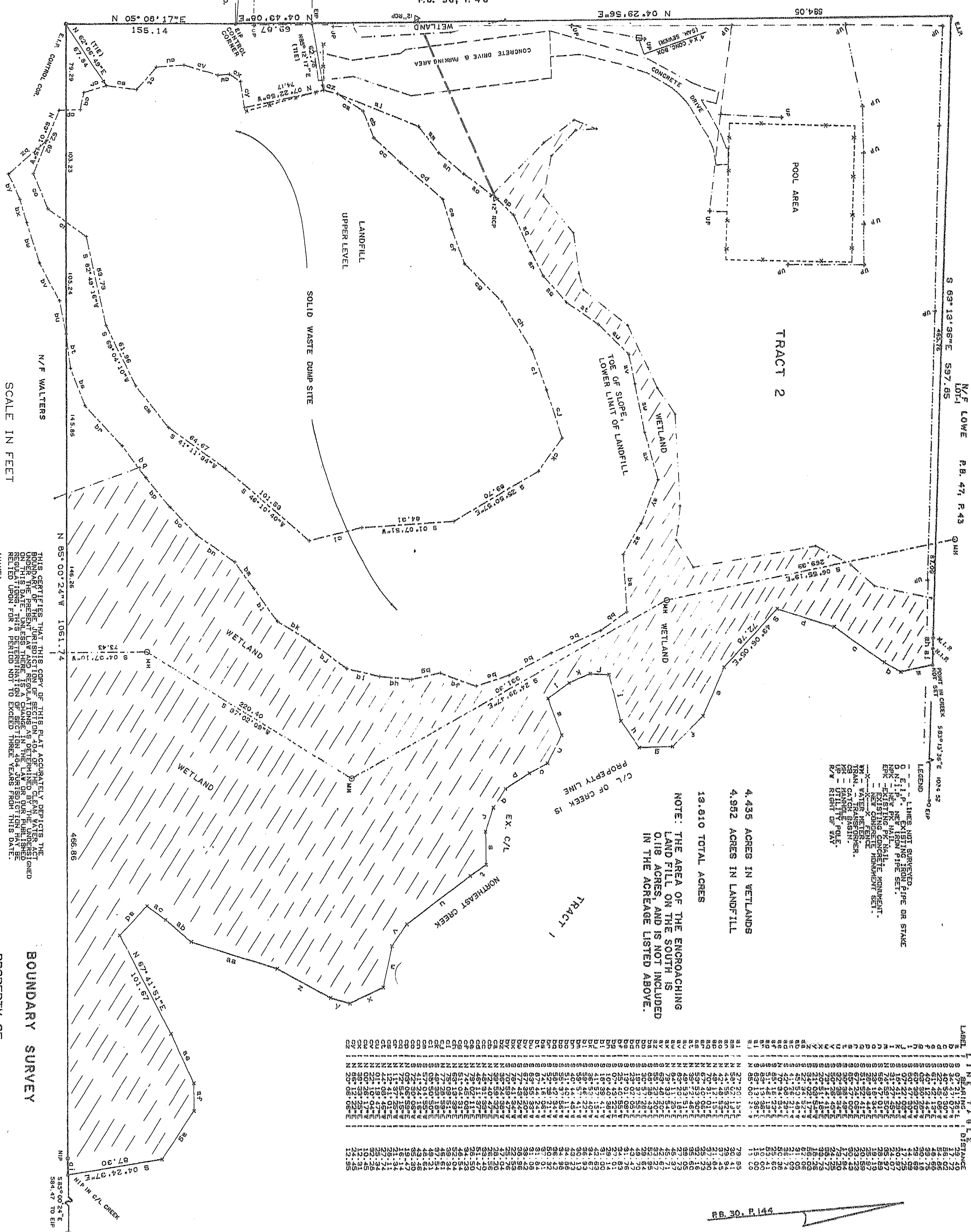
NOTARY PUBLIC
MY COMMISSION EXPIRES
27 SEP 1993
WALTER D. VAN GILSON
NOTARY PUBLIC



FILED
BOOK 127 PAGE 25
92 FEB 20 AM 9 35

RUTH C. GARRETT
REGISTER OF DEEDS
DURHAM COUNTY, N.C.

NORTH CAROLINA
WAKE COUNTY
THE FOREGOING CERTIFICATE OF SURVEY WAS PRESENTED FOR REGISTRATION AND RECORDED IN PLAT BOOK 127, PAGE 25, THIS 20 DAY OF FEB. 1991.
RUTH C. GARRETT
REGISTER OF DEEDS



NO GEODETIC MON. WITHIN 2000'
NOTE:
THIS SURVEY SUBJECT TO ANY FACTS THAT MAY BE DISCLOSED BY A FULL AND ACCURATE TITLE SEARCH.
NOTE:
A PORTION OF THIS PROPERTY IS LOCATED IN A SPECIAL FLOOD HAZARD AREA AS DESIGNATED ON THE FEDERAL EMERGENCY MANAGEMENT AGENCY (F.E.M.A.) COMMUNITY PANEL NO. 370085 0085 A & 370085 0070 A ZONE A6
REF. MAP BY JOHN Y. PHELPS JR., R.L.S.,
TITLED "PROPERTY OF KEY HOMES, INC." DATED 07/13/89

PROPERTY OF
KEY HOMES, INC.
A PORTION OF LOT OF MAP ENTITLED:
DEED 285-375
D215J1, FLD. BK. 159
REGISTERED LAND SURVEYOR
RALEIGH, N.C.
D215J1, FLD. BK. 159

2121
D215J1, FLD. BK. 159